

TENTATIVE RULINGS
Judge Lindsey E. Martínez, Dept. C24

“Civility is not about etiquette. This is not a matter of bad manners. Incivility slows things down, it costs people money – money they were counting on their lawyers to help them save. And it contravenes the Legislature’s directive that ‘all parties shall cooperate in bringing the action to trial[.]’ (Code Civ. Proc., § 583.130.)” (*Masimo Corp. v. The Vanderpool Law Firm, Inc.* (2024) 101 Cal. App. 5th 902, 911; *see generally* OCBA Civility Guidelines.)

- The court encourages remote appearances to save time and reduce costs.
- All hearings are open to the public.
- You must provide your own court reporter and interpreter, if required.
- Call the other side and ask if they will submit to the tentative ruling. If everyone submits, call the clerk. The tentative ruling will become the order. If anyone does not submit, there is no need to call the clerk.
- The court will hold a hearing. The court may rule differently at the hearing. (*See Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Hearing Date: June 1, 2026 at 1:30 pm

Rulings Posted: 5/29/26 at 3 pm

#	Case Name	Tentative
301	<i>Martin vs. In-N-Out Burgers</i>	The Motion for Leave to File First Amended Answer to Plaintiffs’ Complaint, filed on 2/20/26 by defendant In-N-Out Burger (INO) is GRANTED. The Motion complies with C.R.C. 3.1324, and is unopposed. INO’s Request for Judicial Notice (ROA 327), is GRANTED under Evidence Code §452(d), as to the existence of those records. INO is to file and serve its First Amended Answer no later than 6/10/26 and give notice of this ruling.

302	<i>Hull vs. City of Orange</i>	The Motion for Summary Judgment filed on 1/8/26 by Defendant City of Orange (City), which seeks summary judgment on the Complaint filed on 6/25/24 by Plaintiff Brandon Jacob Hull (Plaintiff) is GRANTED. City has met its burden to show that it is entitled to judgment as a matter of law on the sole cause of action asserted by Plaintiff against City, for dangerous condition of public property. In response, Plaintiff has failed to show a triable issue of material fact as to either that cause of action or the proffered defense thereto. City has shown that it did not have notice of a dangerous condition at the subject Intersection prior to the accident. It is undisputed that there had been no reported accidents there in the past decade. (UF 6.) Plaintiff argues that City had been on notice of visibility issues based on complaints in 2005 and 2007. (AF 23, 24, 32, 36, 73.) But a single prior accident does not establish notice that an intersection was unreasonably dangerous. (<i>Mixon v. Pacific Gas & Electric Co.</i> (2012) 207 Cal.App.4th 124, 138.) Similarly, one complaint about safety concerns in 2007 does not suffice. (<i>Id.</i>) City has also shown that in response to the 2005 complaint, it extended the red zone to improve visibility – and thereafter, had no further complaints about that intersection. (UF 6-9.) Plaintiff’s Evidentiary Objections, filed as ROA 125, are OVERRULED. City’s Evidentiary Objections, filed as ROA 132, are SUSTAINED on Obj. Nos. 2 and 3 [hearsay] but otherwise OVERRULED. City shall give notice.
303	<i>United Auto Credit Corporation vs.</i>	Plaintiff United Auto Credit Corporation’s motion to enforce settlement is GRANTED. (See Code of Civ. Proc. § 664.6.)

	<i>Car Stop Auto Inc.</i>	The court shall enter judgment for plaintiff and against defendants Car Stop Auto Inc., Murtaza Z. Mirza and Mirza M. Gulzar in the amount of \$6,000 plus \$1,952.81 in attorney fees pursuant to contract. The court will sign the proposed judgment. Plaintiff shall give notice.
304	<i>Habibi vs. Catholic Charities Diocese of San Diego</i>	The unopposed demurrer filed by defendant Catholic Charities Diocese of San Diego (Defendant) directed to the first amended complaint (FAC) of plaintiff Ghulam Reza Habibi (Plaintiff) is SUSTAINED IN PART with leave to amend. Plaintiff shall file a second amended complaint no later than 6/12/26. Defendant's unopposed motion to strike is GRANTED without leave to amend. <u>Demurrer</u> <u>First Cause of Action for Negligence:</u> The allegations in the FAC appear sufficient to allege a duty owed by Defendant to Plaintiff. (FAC ¶¶ 14, 30.) Defendant argues discretionary decisions in administering public programs do not create tort liability absent a mandatory statutory directive, citing <i>Guzman v. County of Monterey</i> (2009) 46 Cal.4th 887. But that case dealt with public entity liability under Government Code section 815.6. Here, the FAC alleges Defendant is a nonprofit organization. (See FAC ¶ 8.) Moreover, Defendant makes no argument it is a public entity such that the provisions of Government Code section 815.6 would apply to it. Defendant has thus failed to show the claim is subject to demurrer on this ground.

	However, Defendant is correct the negligence claim appears to be barred by the two-year statute of limitations set forth in Code of Civil Procedure section 335.1. Although the FAC does not include any dates, the allegations of the initial complaint show Plaintiff’s negligence claim accrued in April 2023, when Plaintiff suffered injury as a result of Defendant’s alleged breaches. (See Compl., p. 3; <i>Doe v. Roman Catholic Bishop of Sacramento</i> (2010) 189 Cal.App.4th 1423, 1431 [“Generally speaking, a cause of action accrues for purposes of a statute of limitations at the time when the cause of action is complete with all of its elements.”].) “Facts once alleged cannot be withdrawn from consideration by merely filing an amended pleading omitting them without explanation. Accordingly, the court [is] fully justified in examining and considering the original complaint. (<i>Lee v. Hensley</i> (1951) 103 Cal.App.2d 697, 709.) The initial complaint attempted to allege application of the delayed discovery rule to Plaintiff’s claims, but the allegations as pled are insufficient to support application of the rule in this instance. (See <i>Fox v. Ethicon Endo-Surgery, Inc.</i> (2005) 35 Cal.4th 797, 807 [discussing delayed discovery rule].) Here, the initial pleading alleged: “I only fully understood how badly it affected me after some time passed, which is why I am using the delayed discovery rule to file this case now.” (Compl., p. 3.) This conclusory allegation is insufficient to show the delayed discovery rule should apply to Plaintiff’s claim. Based on the foregoing, the demurrer to the negligence cause of action on statute of limitations grounds is SUSTAINED with 20 days leave to amend.
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Defendant also demurred to the second and third causes of action but given both causes of action will be stricken as discussed below, the court does not reach Defendant's arguments regarding the demurrer as to these causes of action.

Motion to Strike

A party given leave to amend following a demurrer is only authorized to amend as permitted by the court ruling. (*Harris v. Wachovia Mortgage, FSB* (2010) 185 Cal.App.4th 1018, 1022-1023.)

Here, the court's November 10, 2025 order sustaining Defendant's demurrer to Plaintiff's original complaint with leave to amend did not permit the addition of new causes of action. (See ROA 31.) The court's ruling permitting leave to amend was limited to the causes of action alleged in the initial complaint. (*Ibid.*) The FAC filed with the court now asserts an additional cause of action for breach of implied promise/promissory estoppel. The FAC thus asserts a new cause of action that is not within the scope of the court's prior order granting leave to amend. The FAC served on Defendant also includes an additional cause of action for negligent infliction of emotional distress, which also exceeds the scope of the court's prior order.

Accordingly, Defendant's motion to strike the second and third causes of action is **GRANTED without leave to amend**.

The court declined to consider the untimely oppositions pursuant to CRC 3.1300(d).

The court continues the CMC to 9/28/26 at 8:45am.

Defendant shall give notice.

305	<i>Tung vs. Purcell</i>	Before the Court are a Demurrer and Motion to Strike filed by defendants Byron Michael Purcell and Ivie McNeill Wyatt Purcell & Diggs as to the Complaint filed by plaintiff Derek C. Tung. The Demurrer is SUSTAINED as to the 1st and 3rd-6th causes of action and OVERRULED as to the 2nd cause of action. The Motion to Strike is GRANTED and DENIED, in part, as set forth herein. Plaintiff has leave to file a first amended complaint by 6/12/26. <u>Demurrer</u> <u>1st Cause of Action: Breach of Contract</u> – This claim is not sufficiently pled. (<i>Richman v. Hartley</i> (2014) 224 Cal.App.4th 1182, 1186.) Terms of written contract are not set out verbatim and written agreement is not attached. (<i>Harris v. Rudin, Richman & Appel</i> (1999) 74 Cal.App.4th 299, 307.) The demurrer is sustained on this cause of action. <u>2nd Cause of Action: Breach of Fiduciary Duty</u> – This cause of action is distinct from the legal malpractice claim in that plaintiff alleges actions taken “for their financial gain.” (Complaint ¶31) (<i>Stanley v. Richmond</i> (1995) 35 Cal.App.4th 1070, 1086 [“a breach of fiduciary duty is a species of tort distinct from a cause of action for professional negligence”].) The demurrer is overruled on this cause of action. <u>3rd Cause of Action: Gross Negligence</u> – “California does not recognize a distinct common law cause of action for gross negligence apart from negligence.” (<i>Jimenez v. 24 Hour Fitness USA, Inc.</i> (2015) 237 Cal.App.4th 546, 552, fn.3) Further, this cause of action is duplicative of the 7th cause of action for
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	Legal Malpractice. (<i>Palm Springs Villas II Homeowners Association, Inc. v. Parth</i> (2016) 248 Cal.App.4th 268, 290 [duplicative cause of action properly subject to demurrer].) The demurrer is sustained as to this cause of action. <u>4th Cause of Action: Reckless Disregard</u> – Plaintiff cites no authority in opposition to defendant’s argument that “reckless disregard” is not a separate cause of action. (<i>DuPont Merck Pharmaceutical Co. v. Sup. Ct.</i> (2000) 78 Cal.App.4th 562, 566 [“By failing to argue the contrary, plaintiffs concede this issue”].) The demurrer is sustained as to this cause of action. <u>5th Cause of Action: Breach of Covenant of Good Faith and Fair Dealing</u> – This claim is not sufficiently pled. (Judicial Council of California Civil Jury Instructions, CACI No. 325 (2026).) Plaintiff fails to allege any facts beyond those alleged in the breach of contract cause of action. (<i>Careau & Co. v. Security Pacific Business Credit, Inc.</i> (1990) 222 Cal.App.3d 1371, 1394.) The demurrer is sustained as to this cause of action. <u>6th Cause of Action: Violation of Professional Code and Ethics</u> - Defendants argue there is no separate cause of action for violation of the Rules of Professional Conduct and that such are used to show attorney malpractice. Plaintiff does not dispute this argument in his opposition. In fact, plaintiff reiterates defendants’ argument and concedes the Rules “do not create an independent civil cause of action.” (Opp. at 3:20-21.) The demurrer is sustained as to this cause of action. <u>Motion to Strike</u> In light of the ruling on the demurrer, the motion to strike the references to “professional code and ethics” in Paragraphs 46-51, as well as the motion
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		to strike “punitive style allegations” found in Paragraphs 38, 39 and 42 are MOOT. The motion to strike plaintiff’s reference to a dollar amount of damages as stated in Paragraphs 28, 32, 36, 40, 44, 51, 57, and Prayer ¶ 1 is DENIED. (See Code of Civil Procedure §425.10.) The motion to strike the request for attorney’s fees in the prayer for damages is GRANTED. No statutory or contractual basis is provided. (Code of Civil Procedure §1021) The court continues the CMC to 9/28/26 at 8:45am. Defendants shall give notice.
306	<i>Carreno Garcia vs. LA Veta Healthcare, INC.</i>	The motion to compel arbitration of the claims of plaintiff Martin Carreno Garcia (Plaintiff) filed by defendants La Veta Healthcare, Inc. and The Ensign Group, Inc. (collectively, Defendants) is CONTINUED for an evidentiary hearing. Plaintiff contends there is no mutual assent here because he does not read or speak English and thus did not know what he was signing, and Defendants knew this but nevertheless required Plaintiff to sign the subject arbitration agreement with no translation. The evidence submitted by the parties shows two sharply conflicting factual accounts as to Plaintiff’s claimed inability to read or speak English and as to whether Defendants knew Plaintiff could not read or speak English. Due to the foregoing factual disputes, the court finds an evidentiary hearing is appropriate to address these issues. (See <i>Hotels Nevada v. L.A. Pac. Ctr., Inc.</i> (2006) 144 Cal.App.4th 754, 762-763.)

		The court will hear from the parties at the hearing as to scheduling of a date for the evidentiary hearing and a continued date for the CMC. Defendants shall give notice.
308	<i>Law Offices of Joseph P. McGinley vs. Falck Mobile Health, Inc.</i>	Before the court is an unopposed Motion Directing Interpleading of Funds (Motion) filed by plaintiff Law Offices of Joseph B. McGinley (Plaintiff). The hearing is CONTINUED to July 6, 2026 at 1:30pm. Plaintiff has not filed the subject funds with the court. The Motion is based upon Code of Civil Procedure sections 386 and 386.5. Under those code sections and for the court to grant the Motion, the moving party must provide an affidavit that it was no interest in the funds it seeks to deposit with the court. The affidavit is also required for the party to recover attorney fees under Code of Civil Procedure section 386.6, subdivision (a). The declaration of Joseph B. McGinley does not contain the required statements. The hearing is continued for Plaintiff to file and timely serve a supplemental affidavit that complies with the code. The CMC is continued to 7/6/26 at 1:30pm. Plaintiff shall give notice.
311	<i>Moon vs. TruAbutment Inc.</i>	Before the Court is a motion by Petitioners Peter Moon and Haengoh Kim in which they seek an order entering a judgment on their Petition for Writ of Mandamus To Compel Inspection of Corporate Books and Records. The Petition is GRANTED, in part, and DENIED, in part, as set forth herein. On December 29, 2025, Petitioners filed a Petition seeking an order that Respondents TruAbutment Inc., Hyung T. Park, Sang H. Yoo, Hyung Ick Kim, Stella K. Kim, and Ron Nguyen “produce electronically to Petitioners' attorney's, Cadden &

	Fuller LLP, copies of TruAbutment's share register, accounting books, records, and minutes of proceedings of the shareholders and the board and committees of the board, and all documents required to be kept by Corporations Code § 1500, <i>et seq.</i> as authorized by California Corporations Code section 1601.” (Petition ¶1) Petitioners also filed declarations of Peter Moon and Haengoh Kim concurrently with the Petition. On January 27, 2026, Petitioners filed the instant motion to enter judgment. While Petitioners also filed another motion and related documents on May 7, 2026, those documents were not filed with the notice required by the Code. (See Code of Civil Procedure §§ 1005(b) and §1010.6(a)(3)(B).) Accordingly, the Court declines to consider the documents filed May 7, 2026. Turning to the merits, the Court finds Petitioners are entitled to receive electronic copies of the “accounting books, records, and minutes of proceedings of the shareholders and the board and committees of the board” from TruAbutment, Inc. (Corporations Code §1601) The Petition to compel TruAbutment, Inc. to provide electronic copies of its accounting books, records, and minutes of proceedings of the shareholders and the board and committees of the board for the most recent complete fiscal year is GRANTED. TruAbutment, Inc. is ORDERED to produce the documents upon receipt of Petitioners’ payment of “the reasonable costs for copying or converting the requested documents to electronic format.” TruAbutment, Inc. shall provide Petitioners an estimate of the cost for preparing the documents within 14 days of the date of this order and then TruAbutment, Inc. shall produce the documents within 14 days after receipt of payment from Petitioners.
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		Corporations Code §1603 authorizes the Court to enforce the right of inspection “with just and proper conditions.” Accordingly, the Court ORDERS that for all documents produced, including any information derived therefrom, access to the documents and information shall be permitted only to the Court, Court personnel, Court Reporters, the named parties to this proceeding, current officers, directors or Board Members of TruAbutment, Inc., the parties’ attorneys and their staff, the parties’ experts or consultants or such other persons as the parties agree in writing or the Court orders. It shall be the obligation of the party giving access to the information to ensure that the person receiving the information is provided a copy of this order. Petitioners’ request for a copy of the share register is DENIED. (Petition at 6:4) Petitioners have not established they own at least 5% of TruAbutment’s stock. (Corp. Code § 1600.) The Petition is DENIED as to Respondents Hyung T. Park, Sang H. Yoo, Hyung Ick Kim, Stella K. Kim, and Ron Nguyen. There is no authority cited which would compel the Director Respondents to produce documents pursuant to Corporations Code §1601. The Court does not find the Respondents’ failure to comply with Petitioners’ demand to have been without justification. Accordingly, the Petitioners’ request for attorneys’ fees is DENIED. Petitioners shall prepare a proposed judgment in accordance with this ruling by 6/10/26 and give notice.
313	<i>Motahari vs. Mottahedan</i>	The unopposed motions to be relieved as counsel of record for defendants Mohammad Mottahedan and Sasha Management Incorporated (collectively,

	Defendants) filed by attorney Brett K. Wiseman, Esq. of Madison Law, APC are GRANTED. Moving counsel has complied with the procedural requirements of C.R.C. 3.1362. The court finds good cause to grant the relief requested on the merits. The motions are thus GRANTED. The orders granting relief are effective upon filing of a proof of service of the signed orders on Defendants. Moving counsel shall give notice.
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